

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 33-005
Amendments to Title 16 of the Chickasaw Nation Code
(Rules of the Legislature)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for the conduct of its meetings, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 16-201.1 **SESSIONS AND MEETINGS.**

A. Regular Sessions of the Legislature shall be held on the third Friday of each month at 9:00 a.m. at the Legislative Building, **Chickasaw Nation Headquarters**, ~~Nation headquarters office~~ unless otherwise provided by the Legislature.

SECTION 16-201.4 **COMMITTEES AND RULES.**

A. **Committee Appointments and Rules.**

2. The Chairperson or Committee Chair shall call a Committee Meeting as he deems necessary. **The Chairperson** ~~Each Committee Chair~~ shall designate **another Committee member** as Committee Chair Pro Tempore to conduct the Committee meetings in the absence of the Committee Chair. ~~If, either, the Committee Chair or Committee Chair Pro Tempore are unable to attend a Committee meeting, then the Committee members, in attendance, shall select someone from among their numbers to conduct the meeting.~~

B. **Standing Committees' Structure and Purpose.**

5. The following are Standing Committees of the Tribal Legislature, the provinces of some which may, from time to time, best be addressed within the structure of a Joint Committee, Special/Select Committee, *Ad Hoc* Committee, or the Committee of the Whole, as determined by the Chairperson:

e. The Land Development Committee shall be responsible for proposed Legislation pertaining to the acquisition, leasing, disposition, and management of real property of the Chickasaw Nation. Sub-committees may include, but are not limited to, all real property acquisition, leasing, disposition, and management, ~~and review of the Chickasaw Housing Authority.~~

F. An "*Ad Hoc* Committee" is a Committee appointed by the Chairperson as needed, comprised of members and possibly non-members of the Legislature who investigate and report on specific matters. Only Legislators appointed to an *Ad Hoc* Committee shall be voting members of that Committee or serve as its Committee Chair. All other members appointed to an *Ad Hoc* Committee shall be advisory, only. It is dissolved by the Chairperson when that function is deemed to have been served. ~~An *Ad Hoc* Committee designated the "Election Rules and Regulations *Ad Hoc* Committee" shall be a permanent *Ad Hoc* Committee.~~ The following are permanent *Ad Hoc* Committees of the Tribal Legislature:

1. Election Rules and Regulations *Ad Hoc* Committee. This Committee may meet at any time throughout the year at the discretion of the Committee Chair; however, the Committee may conduct business only in accordance with the rules set forth in Paragraph 16-201.5.B.2 below.

G. "Committee of the Whole" or "COW" means the Legislature meeting in informal session.

1. Committee of the Whole meets monthly on the Monday immediately preceding the third Friday of each month in Sulphur at the Artesian Resort in the second floor conference room. Quorum for a COW meeting is nine (9) Legislators. The public is invited. The purpose of the monthly COW meeting is to announce the agenda for the Legislative Session, amend ~~or withdraw~~ legislation already assigned to the Legislative Session agenda and adopt emergency legislation, if any. The agenda for COW meetings shall follow the outline provided in the Constitution and Code including the offer to Chickasaw citizens to address the Legislature. If the time or place of the monthly meeting must be changed, notice shall be given to the public.

SECTION 16-201.5

RULES ON LEGISLATION.

B. Proposed Legislation:

3. ~~Whether in Committee or at the Committee of the Whole, all Proposed Legislation may be discussed prior to any motion being made to place the Proposed Legislation on the agenda of a Session.~~

4. The Chairperson shall number and assign proposed Legislation to an appropriate Committee for further review. It shall be kept in said Committee no longer than the third Regular Session of the Legislature following its assignment to said Committee.

45. No Legislation assigned to a Standing Committee shall be allowed to die in said Committee without an action being taken. The Committee Chair asking for a motion to place the Legislation on the agenda of a session shall be considered an “action” for the purposes of this Paragraph 45. After such action is taken, Legislation may die for a lack of a motion or lack of a second.

5. Legislation may be withdrawn in committee by written request of the author or submitter. After legislation has been placed on a Session agenda, it may be withdrawn by majority vote of the Legislature to accept a request to withdraw.

SECTION 16-201.7

SPECIAL RULES OF ORDER ~~ON BUSINESS OF THE~~ LEGISLATURE.

A. The **Special Rules of Order** procedures outlined in this Section shall be the authority for all business conducted by the Legislature and its Committees, except as is elsewhere herein addressed in this Title 16. In addition, other Special Rules of Order may appear in other titles of the Chickasaw Nation Code, for example, Special Rules of Order regarding elections may be found in Title 8; Special Rules of Order for public hearings may be found in Title 10; Special Rules of Order regarding confirming gubernatorial appointments and other issues regarding the Governor may be found in Title 12; all of which are incorporated herein by this reference. B. In deciding matters not addressed specifically by this Title 16, Robert's Rules of Order shall be consulted as the definitive reference, as provided in Article VIII, Section 6 and Article VII, Section 12 of the Constitution of the Chickasaw Nation.

B. Speaking and Debate.

1. Whether in Committee, or at the Committee of the Whole, all Proposed Legislation may be discussed prior to any motion being made to place the Proposed Legislation on the agenda of a Session.

2. A Legislator must be recognized by the Chairperson by raising his hand. Legislators may speak while seated. Once a Legislator has spoken on a matter, he must wait until all other Legislators have had the opportunity to speak on the matter in order to

speak again. If the meeting is continued to another day, the Legislator's right to speak is renewed.

3. Each Legislator shall be allowed up to ten (10) minutes to comment on an issue. Debate must be relevant to the issues at hand. If a Legislator does not use all of his allotted time during any of his opportunities to speak in debate, the Legislator loses all of his remaining time and may not relinquish it to another speaker.

4. The Secretary of the Legislature shall act as time-keeper for debate.

5. Speakers must be courteous and never attack other Legislators or question the motives of other Legislators. In controversial issues, the discussion is focused on ideas, not personalities. Legislators must not use inflammatory statements such as "it's a lie," "it's a fraud" or "He's a liar." Profane language is also prohibited.

6. A Legislator who makes a motion cannot speak against the motion but he can vote against it. The Legislator who seconds a motion, however, can speak against the motion because the second means "Let's discuss it," not "I agree." Sometimes a Legislator seconds a motion so he can speak against it.

7. During debate, a Legislator cannot talk against a previous action that is not pending, unless one of the motions to *Rescind*, *Reconsider*, or *Amend something Previously Adopted* is pending; or unless the Legislator concludes his remarks with one of these motions. Legislators also have the right to conclude their debate with a higher-ranking motion than the one pending; i.e. when the Chairperson recognizes a Legislator for any legitimate purpose, the Legislator has the floor for all legitimate purposes.

8. During debate, Legislators should take care not to disturb the assembly by whispering, talking, walking across the floor, or causing other distractions. All cell phones and other electronic equipment shall be set to silent mode. A Legislator who must take a phone call shall leave the meeting room to do so. Any Legislator, including the Chairperson and Secretary of the Legislature, who ignores the rules of debate, is disruptive or is argumentative beyond reasonable bounds may be, upon motion and second and majority vote of the Legislature in attendance, removed from the meeting place, reprimanded, censured (under rules provided for in Title 16, Chapter 7), and/or referred to the Attorney General as a criminal complaint under Section 5-1505.14, Obstructing Governmental Action. The Legislator that is the subject of such a motion shall be afforded no more than five (5) minutes for rebuttal before the vote is taken. If a Legislator is removed from the meeting place, a motion, second and majority vote of the Legislature in attendance shall be required before the Legislator is allowed to return to that or any subsequent meeting of the Legislature.

9. If at any time during debate the Chairperson needs to interrupt the speaker for a ruling, provide a Point of Information or respond to a point of Parliamentary Inquiry, the Legislator shall stop speaking until the Chairperson is finished and may then resume speaking. The computation of a speaker's time shall not include such an interruption.

10. The time expended in giving a committee report shall not be counted as time allowed for debate.

11. A Legislator has no right to "explain his vote" during voting, which would be the same as debate at such time.

12. The Chairperson may declare the debate closed a) when all the Legislators have either exercised or declined their opportunity to debate, b) when all Legislators have used their allowable debate time; or c) upon recognition of a Motion to Call for the Question. In the case of a Motion to Call for the Question, the Chairperson must determine whether all germane debate has occurred even if all Legislators have not exercised their opportunity for debate. A Motion to Call for the Question requires ratification of a super majority (2/3rds of Legislators present) in order to come into effect. If the motion passes, the question is immediately voted upon.

13. Only Legislators present at a meeting or Session may vote on a question presented. No provision shall allow voting on a question by phone, mail or proxy.

14. It shall be a breach of ethics for a Legislator to change, or to cause to be changed, any previous vote announced by the Chairperson.

15. If a situation is presented that is not enumerated herein, and the situation has been presented before and was treated in a manner that is inconsistent with Robert's Rules of Order, then the Legislature may, upon motion, second and majority vote of the Legislature that is present, suspend the rules to follow the precedent. Otherwise, Robert's Rules of Order shall be followed as provided by the Chickasaw Constitution.

C. Special Rules of Order for Regular, Additional Regular and Special Sessions.

1. The Chairperson shall call the Regular, Additional Regular or Special Session meeting to order.

2. The Recording Secretary shall call roll.

3. A Member of the Legislature or visitor designated by the Chairperson may give an invocation.

4. The Minutes of the last session shall be provided prior to the next Regular Session. The Chairperson shall call for amendments or approval of the minutes as presented. All proposed amendments shall be voted upon. The minutes shall be approved by roll call vote. ~~of the Legislature may be read by the Secretary of the Legislature.~~

5. The Chairperson shall address Unfinished Business. Unfinished Business shall contain all Resolutions that have been tabled or postponed during the reports of Committees. Placing Legislation on the table or postponing Legislation in a Session shall not extend the time limited described in Paragraph 16-201.5.B.4.

6. The Chairperson shall address Reports of Committees:

a. The Committee Chairs of the Committees which have legislation to present on the agenda shall present the reports of their respective committees, as an official statement, addressed to the Chairperson, of action taken, information obtained, or action recommended regarding all proposed Legislation that appears on the agenda. Committee Chairs may make or second a motion.

b. If, for any reason, the Committee Chair of a Committee cannot or chooses not to give the report, ~~the Committee Chair of said Committee, or in his absence~~ the Chairperson shall designate another member of said Committee to give the report.

c. The Chairperson shall not enter into debate of an issue until he has relinquished the Chair to the Secretary. While the Secretary holds the chair, he may not enter into debate on the issue; ~~had participated in the debate of the issue; then the Secretary shall no longer participate in debate of the issue until the~~ Chairperson has returned to the Chair. The Chairperson may answer a specific and/or clarification question without it being considered debate.

7. The members of the Legislature shall receive a copy of the Governor's/Executive Department's written report. ~~Should the Governor desire to address the Legislature, he shall be granted time to do so.~~

8. The Chairperson shall address New Business:

a. Should the Governor desire to address the Legislature, he shall be granted time to do so.

ba. "Comments from Citizens," as provided by Article VIII, Section 4, of the Constitution, at the discretion of the Chairperson, may be heard under the agenda item designated "New Business."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 19, 2016, by a vote of 13 ayes, 0 nays, and 0 abstentions.

Connie Barker

Chairperson
Chickasaw Tribal Legislature

Nancy Elliott

Secretary
Chickasaw Tribal Legislature

Concur:

Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date:

AUG 19 2016

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 33-005
Amendments to Title 16 of the Chickasaw Nation Code
(Rules of the Legislature)

Explanation: This resolution approves amendments to the rules of the Chickasaw Tribal Legislature. The amendments are respectful of and define the use of Robert's Rules of Order as provided by the Chickasaw Constitution.

Presented By: Legislative Committee